

****November 23, 2023****

****A New Sanction for GDPR Violation****

The National Supervisory Authority has completed an investigation in November of the current year regarding the operator SC Sweat Concept One SA, during which it found violations of the provisions of Article 4 paragraph (5) of Law no. 506/2004 on the processing of personal data and the protection of privacy in the electronic communications sector, violations of Article 5 paragraph (1) letters a) and b) and Article 6 paragraph (1) of Regulation (EU) 2016/679, as well as violations of Article 17 in conjunction with Article 12 of Regulation (EU) 2016/679.

As such, the company Sweat Concept One SA was sanctioned as follows:

- a fine of 10,000 lei for violating the provisions of Article 4 paragraph (5) of Law no. 506/2004;
- a warning for violating the provisions of Article 5 paragraph (1) letters a) and b) and Article 6 paragraph (1) of Regulation (EU) 2016/679;
- a warning for violating the provisions of Article 17 in conjunction with Article 12 of Regulation (EU) 2016/679.

The sanctions were applied following complaints alleging that the operator SC Sweat Concept One SA did not respond to the complainant's request to exercise their right to data deletion.

During the investigation, it was found that SC Sweat Concept One SA allowed the storage of information and access to the information stored on users' devices by using cookies available on the operator's website, without obtaining prior express consent, as required by Article 4 paragraph (5) of Law no. 506/2004.

It was also found that the operator processed the complainant's email address for direct marketing purposes without having their consent or another legal basis, thus violating the provisions of Article 5 paragraph (1) letters a) and b) and Article 6 paragraph (1) of Regulation (EU) 2016/679.

Furthermore, it was found that SC Sweat Concept One SA did not communicate a response to the complainant's request to exercise their right to data deletion, although the operator had this obligation under Article 17 paragraph (1) of the GDPR, in conjunction with Article 12 of Regulation (EU) 2016/679.

At the same time, the operator SC Sweat Concept One SA was also subjected to the following corrective measures:

- to take the necessary measures to ensure the lawful processing of personal data of data subjects when using the website sweat.ro, so as to comply with the provisions of Articles 5, 6, and 7 of the GDPR;
- to take appropriate measures to respect the rights of data subjects, including the right to data deletion in the case of the complainant.

In addition, the operator was ordered to actively implement the provisions of Article 4 paragraph (5) of Law no. 506/2004, in relation to the provisions of Article 4 point 11 and Article 7 of Regulation (EU) 2016/679, by obtaining the express consent of users before installing cookies on their devices.

****Legal and Communication Department****

****N.S.A.P.D.C.P.****